

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alex Tuminello	Team: Squad #14	CCRB Case #: 201405191	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/20/2014 5:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/20/2015	Precinct: 73		
Date/Time CV Reported Wed, 05/28/2014 1:59 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/28/2014 1:59 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Michael Muskin	21592	943599	NARCBBN		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. SGT John Parente	02431	933145	NARCBBN		
2. SGT John Addeo	04404	945458	NARCBBN		
3. DT3 David Solmonsohn	03336	933374	NARCBBN		
4. DT3 Courtney Thorpe	01210	937627	NARCBBN		
Officer(s)	Allegation		Investigator Recommendation		
A . POM Michael Muskin	Abuse: PO Michael Muskin entered and searched § 87(2)(b) in Brooklyn.		A . Substantiated		

Case Summary

On May 20, 2014, at approximately 5 p.m., § 87(2)(b) was located inside his apartment at § 87(2)(b) in Brooklyn with his friend § 87(2)(b). § 87(2)(b) exited the apartment and as he did so, Sgt. John Addeo of Narcotics Borough Brooklyn North grabbed him and placed him up against a wall in a hallway outside of the apartment. At the time of the incident, Sgt. Addeo was a detective but he has since been promoted to the rank of sergeant. § 87(2)(b) then exited the apartment, and Sgt. John Parente of Narcotics Borough Brooklyn North grabbed him and placed him against a wall in a hallway outside of the apartment. § 87(2)(b) stated that three other plain-clothed officers then entered his apartment as well; however, the investigation determined that PO Michael Muskin of Narcotics Borough Brooklyn North was the only officer to enter the location (**Allegation A**). § 87(2)(b) did not observe anything specific to the search of the location. § 87(2)(b) and § 87(2)(b) were both placed under arrest for § 87(2)(b) and placed in a police van. The men were transported back to the 73rd Precinct stationhouse.

Mediation, Civil and Criminal Histories

- This case was ineligible for mediation because § 87(2)(b) and § 87(2)(b) were arrested in regards to this incident.
- As of May 12, 2015, § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the NYC Comptroller's Office in regards to this incident. (Encl. 29A).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer Histories

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (Encl. 4A).
- PO Muskin has been a member of the NYPD for eight years and has one exonerated CCRB allegation pled against him. (Encl. 3A).

Potential Issues

- On July 2, 2015, the undersigned investigator contacted § 87(2)(b) via telephone. § 87(2)(b) stated that he had no interest in providing a statement to the CCRB after his criminal case in regards to this incident was dismissed.

Civilian Statements

§ 87(2)(b) (Complainant/Victim) (Encl. 7A-7H).

- On June 5, 2014, § 87(2)(b) was interviewed at the CCRB.
- At the time of the incident, § 87(2)(b) stated that he was with his friend § 87(2)(b). The investigation has identified this individual as § 87(2)(b). § 87(2)(b) was at § 87(2)(b) in Brooklyn dropping something off.
- As § 87(2)(b) exited the apartment to go back to work, he was grabbed by Sgt. Addeo and placed up against a wall in the hallway outside of the apartment. § 87(2)(b) stated that as he exited the apartment to see what was going on, he had his right foot out of the door when he was grabbed by Sgt. Parente and placed up against a wall in the hallway outside of the apartment. Both men were then handcuffed.

- § 87(2)(b) stated that Sgt. Addeo, Sgt. Parente and a third officer remained in the hallway with him and § 87(2)(b) as three other officers ran into his apartment. § 87(2)(b) requested to see a warrant from Sgt. Parente and he was told that the situation would be explained to him at the stationhouse.
- § 87(2)(b) stated that when the three officers entered his apartment, he observed them go straight to a back room. He did not observe where they specifically searched inside of the location.
- § 87(2)(b) stated that both he and § 87(2)(b) were frisked and the officers' search of the location lasted approximately five minutes. § 87(2)(b) stated that the officers explained to him that they located an ounce of marijuana in his bedroom. § 87(2)(b) and § 87(2)(b) were then escorted to a police van and transported to the 73rd Precinct stationhouse.

NYPD Statements

POLICE OFFICER MICHAEL MUSKIN (SUBJECT OFFICER) (Encl. 12A-12E).

- On October 3, 2014, PO Muskin was interviewed at the CCRB.
- § 87(2)(e), § 87(2)(f) [REDACTED]
- PO Muskin stated that the officers observed § 87(2)(b) and § 87(2)(b) in the doorway of an apartment with their hands' clenched. PO Muskin positively identified both men from their CCRB photographs. PO Muskin stated that § 87(2)(b) then opened his hand and he observed § 87(2)(b) attempt to place a bag of marijuana in one of his pants' pockets. PO Muskin then stated, "Police, don't move."
- PO Muskin approached and spoke with § 87(2)(b) while Sgt. Parente spoke to § 87(2)(b). PO Muskin frisked § 87(2)(b) and went directly to the pocket in which § 87(2)(b) placed the marijuana. He was unsure which pocket this was during his interview. PO Muskin located a quantity of marijuana on § 87(2)(b). He then frisked § 87(2)(b) and did not locate anything.
- PO Muskin stated that the door to the apartment remained open for the entirety of the incident. Approximately less than a foot away from the door, PO Muskin saw a small table. He stated that this table was in reachable distance from the door and he observed a scale and a quantity of marijuana. He then reached towards the table and recovered the items. PO Muskin was asked if the officers needed a warrant in order to acquire these items and he stated, "The officers did not need one or have one, was not warranted." PO Muskin stated that § 87(2)(b) did request to see a warrant. PO Muskin did not mention that any other civilians were inside of the location.

SERGEANT JOHN PARENTE (WITNESS OFFICER) (Encl. 14A-14E).

- On October 3, 2015, Sgt. Parente was interviewed at the CCRB.
- § 87(2)(e), § 87(2)(f) [REDACTED]

- § 87(2)(e), § 87(2)(f)
- The officers made their way to the fourth floor and observed § 87(2)(b) and § 87(2)(b) in the doorway of an apartment on the fourth floor. § 87(2)(b) had one foot in the apartment and § 87(2)(b) was in the hallway.
- Sgt. Parente stated to the men, “Police, we have to talk to you.” He was unsure if the men were escorted further into the hallway or if they voluntarily approached the officers.
- The officer explained to the men that they would be placed under arrest and both men were frisked and searched pursuant to arrest. A quantity of marijuana was located on § 87(2)(b) and United States currency was located on § 87(2)(b). Sgt. Parente was unsure which officers located the items and which officers handcuffed the men.
- Sgt. Parente also stated that located approximately three feet from the door inside of the apartment was a small table. Sgt. Parente stated that he and PO Muskin observed a quantity of marijuana, a digital scale and zip-lock bags on a table in plain-view. PO Muskin then entered the threshold of the doorway in order to recover the property. Sgt. Parente stated that he did not give PO Muskin any commands in regards to entering the apartment and stated that the officers did not have a warrant.
- Sgt. Parente explained that because the items were in open-view in the doorway, the officers were conducting an operation, making an arrest and the table was in a lungable area from outside of the door, it was standard procedure to take the drugs and paraphernalia to voucher them. Sgt. Parente did not mention that any other civilians were inside of the location.

SERGEANT JOHN ADDEO (WITNESS OFFICER) (Encl. 16A-16E)

- On October 10, 2014, Sgt. Addeo was interviewed at the CCRB.
- Sgt. Addeo stated that on the date of the incident, he was conducting a narcotics operation with the 73rd Precinct’s Module Team. He recalled working with Sgt. Parente and PO Muskin. Sgt. Addeo was a detective at the time of the incident.
- § 87(2)(e), § 87(2)(f)
- The officers then observed two males identified as § 87(2)(b) and § 87(2)(b) exit the apartment and the officers converged on their location. Sgt. Addeo stated that both men were placed in handcuffs 10-plus feet from the apartment door. Sgt. Addeo stated that he frisked and searched § 87(2)(b) pursuant to arrest and was unsure as to what was located on him. He did not recall which officer frisked and searched § 87(2)(b) and stated that he was unsure what was located on the individual.
- Sgt. Addeo was then asked whether or not the apartment door from which the men exited was closed shut. He did not recall this information and stated that none of the officers entered the location at any point. He stated that the only time an officer went near the door was to confirm the apartment number.
- The undersigned investigator presented the property vouchers that were filled out by PO Muskin which indicate that a digital scale and zip-lock bags were recovered from the location. Sgt. Addeo did not recall where these items were specifically found. Sgt. Addeo did not mention that any other civilians were inside the location.

On February 10, 2013, Detective Solmonsohn was interviewed at the CCRB. Detective Solmonsohn's memo book indicated that he was present for the arrest of § 87(2)(b) and § 87(2)(b). However, Detective Solmonshon did not have an independent recollection of this incident.

- DETECTIVE COURTNEY THORPE (WITNESS OFFICER) (Encl. 20A-20C).**

- ## NYPD Documents

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where these items were located. Detective Nelson is listed as the finder of the property (Encl. 25A-25B).

- Property Voucher filled out for § 87(2)(b) indicates that he was found in possession of marijuana in a zip-lock bag, other paraphernalia with marijuana residue (digital scale) and other paraphernalia without residue. The property voucher does not specify where these items were located. PO Muskin is listed as the finder of the property (Encl. 26A-26B).

Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Explanation of Subject Officer Identification

- § 87(2)(b) stated that six officers, including a female officer, responded to his apartment on the date of the incident. Sgt. Parente, PO Muskin and Sgt. Addeo stated they were the only three officers to go inside the building in response to the positive buy at the location. PO Muskin acknowledged that he observed a table that was in reachable distance from the door and he observed a scale and a quantity of marijuana. He then reached towards the table and recovered the items. § 87(2)(g)
- A property voucher filled out for § 87(2)(b) lists Detective Nelson as the finder of marijuana and other paraphernalia from § 87(2)(b)'s person. According to the other officers' testimony, Detective Nelson never went upstairs and only PO Muskin entered the apartment. It is likely that Detective Nelson was listed on the property voucher because her assignment would have tasked her with searching the prisoners at the prisoner van prior to transporting them. § 87(2)(g)

Recommendations

Allegation A: Abuse of Authority- PO Michael Muskin entered and searched § 87(2)(b)

in Brooklyn.

It is undisputed that an officer from Narcotics Borough Brooklyn North entered and searched inside of § 87(2)(b) in Brooklyn. As § 87(2)(b) exited the apartment, he was grabbed by Sgt. Addeo and placed up against a wall in the hallway outside of the apartment. § 87(2)(b) stated that as he exited the apartment, he had his right foot out of the door when he was grabbed by Sgt. Parente and placed up against a wall in the hallway outside of the apartment. § 87(2)(b) stated that Sgt. Addeo, Sgt. Parente and a third officer remained in the hallway with him and § 87(2)(b) as three other officers ran into his apartment. § 87(2)(b) requested to see a warrant from Sgt. Parente and he was told that the situation would be explained to him at the stationhouse. § 87(2)(b) stated that when the three officers entered his apartment, he observed them go straight to a back room. He did not observe where they specifically searched inside of the location. § 87(2)(b) stated that the officers explained to him that they located an ounce of marijuana in his bedroom. § 87(2)(b) did not indicate that any additional civilians were at the location during the time of the incident.

PO Muskin stated that after § 87(2)(b) and § 87(2)(b) were apprehended, the door to the apartment remained open for the entirety of the incident. Approximately less than a foot away from the door, PO Muskin saw a small table. He stated that this table was in reachable distance from the door and he observed a scale and a quantity of marijuana. He then reached towards the table and recovered the items. PO Muskin was asked if the officers needed a warrant in order to acquire these items and he stated, “The officers did not need one or have one, was not warranted.” Sgt. Parente also corroborated that located approximately three feet from the door inside of the apartment was a small table. Sgt. Parente stated that PO Muskin observed a quantity of marijuana, a digital scale and zip-lock bags on a table in plain-view. PO Muskin then entered the threshold of the doorway in order to recover the property. Sgt. Parente stated that he did not give PO Muskin any commands in regards to entering the apartment and stated that the officers did not have a warrant. Sgt. Parente explained that because the items were in open-view in the doorway, the officers were conducting an operation, making an arrest and the table was in a lungable area from outside of the door, it was standard procedure to take the drugs and paraphernalia to voucher them. Sgt. Addeo did not recall if any of the officers entered the location on the date of the incident. None of the officers indicated that there were any additional civilians inside the location at the time of the incident.

Without legal authority to enter a residence, entry into private home cannot be justified by seizing an object in plain view. People v. Myrick, 2 Misc.3d 359 (Dist. Ct. Suffolk Cty. 2003); People v. Brown, 96 N.Y.2d 80 (2001); People v. Vega, 276 A.D. 2d 414 (App. Div. 1st Dep’t. 2000) (Encl. 1A-1J). Under the plain view doctrine officers must have lawful access to the seized item at the time of the seizure. Lawful access may be established by an exception to the warrant requirement, such as exigent circumstances. People v. Coles, 105 A.D.3d 1360 (App. Div. 4th Dep’t. 2013) (Encl. 1K-1M). For the “protective sweep” exception to apply there must be a factual predicate to reasonably infer the presence of a person who might destroy evidence or pose a threat to the officers. People v. Harper, 100 A.D.3d 772 (App. Div. 2nd Dep’t. 2012); People v. Bryant, 91 A.D.3d 558 (App. Div. 1st Dep’t. 2012); People v. Andino, 256 A.D.2d 153 (App. Div. 1st Dep’t. 1998); People v. Jimenez, 22 N.Y.3d 717 (2014) (Encl. 2N-2W).

§ 87(2)(g)

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

§ 87(2)(g) [Redacted]
[Redacted] It is therefore recommended that **Allegation A** be closed as **substantiated**.

Pod 14

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date